



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

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6325

OCT 4 1996

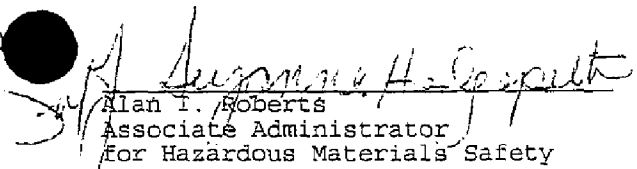
EMERGENCY PARTY-TO-STATUS TO EXEMPTIONS FOR COMPANY LISTED BELOW

In accordance with 49 CFR 107.111 of the Department of Transportation (DOT) Hazardous Materials Regulations (HMR), the party(ies) listed below is granted the status of party to DOT-E 4453, DOT-E 5206, DOT-E 6325, DOT-E 6743, DOT-E 8453, DOT-E 8554, DOT-E 8723, DOT-E 8815, DOT-E 9623, DOT-E 11230, and DOT-E 11156. The expiration date of the exemption for the party(ies) is January 31, 1997.

This emergency party status, which will prevent serious economic loss, applies only to the party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.113. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it. This emergency party status is not retroactive.

OCT 4 1996

(DATE)


Alan I. Roberts
Associate Administrator
For Hazardous Materials Safety

Dist: FHWA FAA FRA USCG

EXEMPTION HOLDER

Energetic Solutions, Inc.
Dallas, Texas

APPLICATION DATE

October 1, 1996



U.S. Department
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DOT-E 6325 (PTE)
THIRD REVISION May 12, 1983
CORRECTED COPY

In accordance with 49 CFR 107.107 of the Department of Transportation (DOT) Hazardous Materials Regulations the party(ies) listed below is granted the status of party to DOT-E 6325. The expiration date of the exemption for the party(ies) is February 28, 1998.

This party status applies to the party(ies) listed below based on the application(s) submitted in accordance with 49 CFR 107.107 and the public proceeding thereon. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it.

for Marilyn L. Morris
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

November 12, 1996
(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Energetic Solutions, Inc.
Dallas, TX

July 31, 1996



U.S. Department
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Research and
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400 Seventh Street, S.W.
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DOT-E 6325 (EXTENSION)
THIRD REVISION May 12, 1983
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 6325 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to February 28, 1998. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

for Marilyn E. Morris
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 2 1986

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Austin Powder Company
Cleveland, OH

February 21, 1996

Green Mountain Explosives, Inc.
Auburn, NH

February 22, 1996

ICI Explosives USA, Inc.
Dallas, TX

March 27, 1996



U.S. Department
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MAR 29 1996

DOT-E 6325 (EXTENSION)
THIRD REVISION May 12, 1983
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 6325 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to February 28, 1998. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

for Marilyn E. Morris
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAR 29 1996

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Green Mountain Explosives, Inc.
Auburn, NH

February 22, 1996



U.S. Department
of Transportation

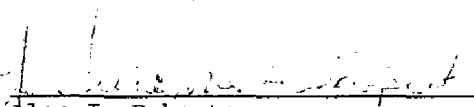
**Research and
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Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 6325 (EXTENSION)
THIRD REVISION May 12, 1983
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 6325 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to June 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 31 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Austin Powder Company
Cleveland, OH

June 23, 1994

ICI Explosives USA Inc.
Dallas, TX

June 28, 1994

Green Mountain Explosives, Inc.
Auburn, NH

August 4, 1994

OCT 31 1994

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CONTINUATION OF DOT-E 6325 (EXTENSION)

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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400 Seventh Street, S.W.
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DOT-E 6325
(THIRD REVISION)
(CORRECTED COPY)

1. Austin Powder Company, Cleveland, Ohio, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of certain oxidizers for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of oxidizers as described in paragraph 3 below to be shipped in containers not presently authorized in 49 CFR, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption.

Mining Services International, (MSI) Salt Lake City, Utah - PTE-1.
Mesabi Powder Co., (MPC) Hibbing, Minn. - PTE-2.
Atlas Powder Company, Dallas, Texas - PTE-3.

2. BASIS. This exemption is based on Austin Powder Company's application dated February 9, 1982, and supplement dated February 15, 1983, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

MSI application dated March 9, 1982.
MPC's application dated February 22, 1982.
Atlas Powder Company's application dated April 27, 1982.

3. HAZARDOUS MATERIALS (Descriptor and class). Oxidizer solutions, in slurry form, classed as an oxidizer and which have been examined or tested by the Bureau of Explosives (B of E) or the Bureau of Mines. A copy of the test report and a complete description of the commodity must be filed with, and acknowledged in writing by, the Office of Hazardous Materials Regulation (OHMR) prior to the first shipment.

4. PROPER SHIPPING NAME (49 CFR 172.101). Oxidizer or Oxidizing material, n.o.s.

5. REGULATION AFFECTED. 49 CFR 173.154(a).

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is as follows:

a. Non-DOT specification cargo tank designed and constructed in accordance with Hercules Incorporated's drawing 099-8010-52047, Rev. 5 (3,000-gallons capacity) or 092-0711-52041, Rev. 2 (2,000 gallons capacity) on file with the OHMR; or

b. DOT Specification MC-306, MC-307, or MC-312 cargo tanks fabricated from austenitic stainless steel.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Each tank is authorized only for dedicated use and must have a thorough cleaning each time it is used for a different solution. Each tank must be thoroughly cleaned at least every 6 months and a chemical analysis made of the oxidizing material residue left in the tank.

c. Each cargo tank must be reinspected and retested once every 2 years in accordance with 49 CFR 177.824. Pneumatic retesting at one and one-half times the design pressure is authorized in place of the required hydrostatic test. Compliance with 49 CFR 177.824(c)(4) is hereby waived.

d. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-E 6325."

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMR as soon as practicable.

10. EXPIRATION DATE. April 1, 1984.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

MAY 12 1983

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA